

24STCV30033 24STCV30033

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F13%2F2026

Source SHA-256: 60b011f1ad03f4c7ea3e884ab337170727b8660fce02de467eca221c3653f3e5

Case Number: 24STCV30033 Hearing Date: July 13, 2026 Dept: 510

No.

14 - John Salib v. Keith Ellington Frazer, et al.

Defendant Daniel Deleon's Motion for
Determination of Good Faith Settlement

Defendant

Daniel Deleon moves for an order determining the good faith of his settlement with
Plaintiff John Salib under Code of Civil Procedure section 877.6, subdivision
(a).

When

only some of multiple defendants alleged to be jointly liable settle a case,
the settling parties may apply to the court for a determination of good faith
settlement. (Code Civ. Proc., §
877.6(a).) A determination of good faith “shall bar any other joint tortfeasor
or co-obligor from any further claims against the settling tortfeasor or
co-obligor for equitable comparative contribution, or partial or comparative
indemnity, based on comparative negligence or comparative fault.” (Id.,
subd. (c).)

Any opposing party bears “the
burden below to show the settlement amount was ‘so far “out of the ballpark” in
relation to’ the [various] factors that the settlement was inconsistent with
the equitable objectives of section 877.6.” (Cahill v. San Diego Gas &
Electric Co. (2011) 194 Cal.App.4th 939, 967; accord Code Civ. Proc., §
877.6(d).)

After

considering all relevant factors, the Court finds the settlement between Defendant Deleon and Plaintiff was made in good faith. In making such a determination, the Court must consider various factors stated in Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499-500. “ ‘Good faith may be found only if there has been no collusion between the settling parties and where the settlement amount appears to be within the “reasonable range” of the settling party’s proportionate share of comparative liability for a plaintiff’s injuries.’ ” (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 872.)

Defendant Deleon settled with Plaintiff for \$25,000.

(Elkerton Decl., ¶ 3.) Defendant states that the settlement was made in good faith, and was the result of arm's-length negotiations. (Motion, at p. 8.)

After considering all relevant factors, the Court finds Defendant Deleon presents sufficient evidence showing this settlement is within the reasonable range of his potential share of liability.

No other party has asserted a lack of good faith or presented any evidence on that issue. “The party asserting the lack of good faith shall have the burden of proof on that issue.” (CCP § 877.6(d).)

Disposition

Defendant

Daniel Deleon’s motion for determination of good faith settlement is granted.

Under Code of Civil Procedure

section 877.6, the Court hereby finds the settlement between Defendant

Daniel Deleon and Plaintiff

John Salib was made in good faith.